

United States District Court for the District of South Carolina

Piedmont Booksellers Guild v. City of Norvale

Case No. SYN-DSC-26-CV-0107 City of Norvale's Reply Supporting Stay Pending Appeal
Filed January 28, 2026

The Guild's opposition confirms that interim administration, rather than viewpoint discrimination, is the immediate dispute. The City agrees that no speaker should be excluded because of an idea and that ordinary site rules remain available. The question is whether the January 23 order leaves enough clarity for staff to identify, review, and address the operational effects of scheduled presentations while appellate review proceeds. The motion presents a substantial likelihood of corrective relief and a practical need for a short stay.

The Guild treats compensation, scheduling, format, and audience concentration as wholly separable. They are not always so. A paid appearance ordinarily reflects a planned program within the organizer's control, and the required time and short topic description help distinguish that program from casual table conversation. The City does not say payment predicts danger. It says the trigger identifies an administrable category for advance coordination. Whether that choice burdens more speech than necessary is a serious appellate question, not an issue foreclosed by the peaceful history.

The City's injury is not simply missed revenue. Officials must apply an order that restrains an entire named ordinance yet preserves an undefined body of neutral requirements. If a substitution arrives shortly before the fair, staff must decide whether requesting review violates the injunction. If a predicted crowd conflicts with transit work, staff must decide whether a condition is event based or tainted by the speaker trigger. Those decisions occur before an appellate court can restore lost planning time.

The Guild's offer of updated logistical information is constructive, but it illustrates why temporary structure is needed. The proposed distinction between a “material” change and a speaker-only change is not self-executing. A different author at the same place and time may draw a materially different audience; a revised format may alter equipment or seating. Staff must be allowed to ask neutral questions and reach a written decision without litigating contempt at each step.

The City's three-business-day proposal is an enforceable condition it invites the Court to place in a stay order, not a request for deference to an informal promise. The Court can require decisions by that deadline, allow only neutral topic descriptions, and preserve immediate return for relief. Those safeguards directly address the Guild's timing concerns while permitting a reviewing court to consider the ordinance before its administration is displaced for six separate events.

The Guild also minimizes the Rule 65 defects. The operative paragraph does not enumerate which application items, fee provisions, amendment terms, or risk conditions are restrained. It provides no security amount and no finding supporting the omission. Even if the memorandum supplies context, officials and nonparties subject to an injunction should not have to infer prohibited acts from the litigation history. A stay or prompt clarification is warranted independently of the ultimate First Amendment result.

The City accepts that the equities require speed. It does not seek a months-long interruption that would cancel the Guild's series. It asks for a stay until the Fourth Circuit can act on an expedited request, or a partial stay preserving collection and use of neutral logistical data while suspending the disputed fee. The City will not consider viewpoint, will provide written reasons, and will maintain the service lane and other requirements through objective event information.

No party benefits from an ambiguous regime. The Guild should know which information it must provide; staff should know what it may review; and the public should know that safety measures and expressive freedom remain protected. A narrowly conditioned stay offers that stability. Denial leaves the City to choose between under-enforcement and contempt risk while the appeal proceeds.

The Court should therefore grant the motion, condition interim administration as proposed, and require status reporting after appellate action. Alternatively, it should stay only the portions necessary to permit neutral schedule review and documented conditions, clarify the restrained provisions, and address security expressly. These forms of relief preserve the appeal without deciding the complaint finally or dissolving every protection afforded by the January 23 order.

Respectfully submitted January 28, 2026, by counsel for the City of Norvale. Counsel certifies same-day electronic service and states that no new evidence accompanies this reply; the motion rests on the preliminary-injunction record and the parties' competing proposals for interim administration.